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February 16, 2026

VIA EEOC RESPONDENT PORTAL

Jacquie Jones-Mounts
Acting Local Director
Greenville Local Office
United States Equal Employment Opportunity Commission

Re: Response to Charge of Discrimination

Complainant: Elizabeth Lord

Respondent: Contender Development

EEOC Charge No.: 436-2026-00670

Dear Ms. Jones-Mounts:

This letter is in reference to the above-captioned Complaint filed by Elizabeth Lord. This law firm represents the Respondent/Employer Contender Development, Inc. d/b/a Contender America ("Contender" or "Company"). This letter together with the attachments constitute the Company's response to Lord's Charge.¹

In her Charge, Lord alleges that she was discriminated and retaliated against in violation of the Age Discrimination in Employment Act. Contender denies the allegations contained in her Charge and maintains that any and all actions taken against Lord were done so for legitimate, non-discriminatory and non-retaliatory reasons. As set forth below, Lord cannot establish her high burden under the ADEA that *but for* her age, she would have been treated in any other manner.

¹ By filing this response, the Company does not waive any legal defenses it may have to the Charge. For example, the Company may raise jurisdictional procedural defects as complete or partial defenses to the Charge. Additionally, the Company may present and rely on additional facts or matters not set forth in this response. At a later date, if such presentation is necessary, the Company also reserves the right to supplement this response to address additional facts, information, or other matters, as the circumstances may deem appropriate.

II. POSITION STATEMENT

A. Contender Is an Equal Opportunity Employer

Contender is firmly committed to equal employment opportunity and providing a work environment in which all individuals are treated with respect and dignity. The Company is committed to providing all employees and applicants equal opportunity in employment and a work environment free from all forms of discrimination, harassment, and retaliation. The Company's relevant non-discrimination and harassment policy is attached as Exhibit 1.

B. Lord's Employment with the Company

Lord began her employment with Blackstream International Real Estate, LLC ("Blackstream")² in July 2022 as Marketing Director. In the Spring of 2025, the relationship between Lord and one of her co-workers, Haley Cape³, had deteriorated to the point where it was decided that Lord would be offered the opportunity to move over to Contender full time in April 2025. Despite the fact that both Lord and Cape both reported to Christine Brodsky, Lord felt that Cape was holding clandestine meetings with Brodsky and Michael Mumma, Blackstream's Chief Executive Officer. No such clandestine meetings occurred and even if they did, Cape would have been free to meet directly with higher level management on projects she was working on. Lord also began demanding that Cape keep her fully informed of all the work she was doing. In essence, Lord viewed Cape as a subordinate and began treating her as such despite the fact that Cape did not report to Lord. This increasingly caused friction between the two.

At around this same time, Blackstream was experiencing increased demand for graphic design centric services in connection with the digital marketing of homes, a skill that more clearly aligned with Cape's talents. Contender had also been experiencing significant growth and had a need for a full-time Marketing Director who could focus on global brand strategy across several of Contender's business lines; this fit nicely within Lord's skills and experience. However, Lord was not "told" that she was being transferred as she alleges in her Charge. Instead, management met with Lord to discuss the opportunity for this transition prior to that date and gave her the option to transition over to Contender or remain in her current role at Blackstream⁴. Lord responded that she wanted the new title of "Chief Marketing Officer"⁵ and to be included in high level management meetings. In essence, she sought to expand the scope of her role. The Company did not, however, feel that her vision of the position aligned with that of the Company given the nature of her position and duties which would not change with her transition to Contender. Lord further suggested working with the Company as an independent contractor but her proposed rate would

² Blackstream is a residential real estate brokerage firm which is a licensee of Christie's International Real Estate. Contender and Blackstream are separate entities with some overlap in ownership. Contender is a real estate development firm. Although Lord was employed by Blackstream initially, her role included performing marketing services for **both** Blackstream and Contender.

³ Cape was hired in August 2023 to perform administrative functions and graphic design work. Her title was that of Services and Experiences Coordinator. Both Cape and Lord reported to Christine Brodsky, Blackstream's Chief Operating Officer.

⁴ Contender accommodated Lord when she made the transition. Lord was presented with Contender's standard offer of employment letter. She objected to the non-compete provision. It was removed, but she still refused to sign. Lord also refused to sign the standard employee handbook acknowledgment.

⁵ No such position exists.

have resulted in her receiving substantially higher compensation. Ultimately, Lord accepted and transitioned to her role with Contender on May 1, 2025. Lord's new role did not result in a decrease in compensation, and her duties and responsibilities remained largely the same.

C. Lord's Complaint and the Company's Response

On November 14, 2025, Lord provided her direct manger, Thomas Phillips, Chief Growth Officer, a letter in which she complained that she was being discriminated against, harassed, and retaliated against based on her age, and that she was being "constructively discharged" from her position.⁶ The letter set forth a laundry list of items that she claimed were evidence of her claims such as an alleged comment made by CFO Peter Reinert about why she was so concerned about her job title (recall she requested the title of Chief Marketing Officer) "at her age" that was allegedly made in an April 25, 2025 meeting with Ford Elliott, Chief Executive Officer, Cameron Aldridge, Human Resources Director, and Reinert; an alleged age-related comment she overheard other employees saying about another employee; and her belief that another employee "disclosed her age" causing her "extreme embarrassment." Lord concluded her complaint with a demand of a \$350,000.00 severance package.

Lord's Complaint was then provided to Aldridge, Human Resources Director. Aldridge conducted an investigation into her claims and provided her with a response on November 24, 2025. In that response, Aldridge explained that a number of the concerns that Lord raised in her complaint were duplicative of concerns that had previously been raised and addressed by the Company. However, Aldridge specifically addressed Lord's age-related allegations. With regard to Lord's claim that Reinert made a comment about her age in the April 25, 2025 meeting, Aldridge explained that Reinert denied making any comments. Aldridge further pointed out that he was also in that meeting and that he had no recollection of Reinert making any comments about Lords' age. Aldridge then explained that the comment about an older worker that she believed she overheard was incorrect. He explained that one of the employees Lord alleged to have been involved was not present for that conversation. Instead, Aldridge explained that he was involved in that conversation with another employee and they were discussing when they both worked in the hotel industry and how they preferred to hire older employees because of their skills and dependability. Lord responded by initially admitting that she may have misremembered the conversation, only to later walk that back by insisting she overheard something. Finally, Aldridge explained that Cape – the employee who allegedly "disclosed" Lord's age – denied that she made any such comment and that Cape did not know Lord's age. Aldridge concluded the Company's response by stating that the Company declined to discuss a severance with her and, instead, hoped that she would continue working with the Company. A copy of this response is attached as Exhibit 2.

D. Lord's 2025 Evaluation

On October 17, 2025, a couple of weeks prior to her complaint to the Company, Lord completed the self-evaluation portion of her 2025 employee performance review. This was the first evaluation Lord had for her new role as Director of Marketing for Contender. Phillips, Lord's

⁶ It should be noted that at the time of this complaint, Lord was still employed with the Company and there was no action against her or discussions of her termination. Indeed, Lord is still employed with the Company in her same position. Therefore, she could not have been "constructively discharged."

supervisor, then completed his portion of the evaluation and met with Lord to discuss her performance. This meeting took place on December 15, 2025 – a few weeks after Lord provided Phillips with her complaint. Phillips gave Lord the highest performance rating – “excellent” – in each category and gave Lord nothing but positive comments and feedback on her review. A copy of Lord’s 2025 performance review is attached as Exhibit 3. Further, Phillips recommended Lord receive a 5% increase in her compensation, which she received retroactive to January 1, 2026 as is the case with all employees who earned increases this year.

E. Contender Counsels Lord for False Information

Prior to Lord’s annual performance review meeting, Phillips and Aldridge discussed a separate issue with Lord. On December 8, 2025, an employee of Blackstream sent Reinert a text in which the employee stated that Lord had told him that Contender was “out of money and they couldn’t make payroll.” Because of this, the employee said Lord told him he should start looking for other work. Lord’s statement was entirely false and, for obvious reasons, concerned Reinert. Because of the seriousness of the false statements Lord had allegedly made about the Company’s ability to pay its employees, Aldridge asked Lord about the alleged comments. Lord did not deny that she made the statements and claimed that another employee – Stuart Owen⁷ – had made similar comments. Lord was counseled that her statement about the financial situation of the Company was false and counseled not to discuss such false statements in the future. The counseling was documented as a “verbal warning” and had no impact on her evaluation, her compensation, job duties or otherwise. A copy of this verbal warning is attached as Exhibit 4. The group then continued the meeting to discuss Lord’s annual performance evaluation, as discussed above.

Because Lord told Aldridge and Phillips that Owen made similar statements, Aldridge met with Owen the following day, December 16, 2025, to discuss Lord’s allegation. Although Aldridge did not disclose that Lord had reported his alleged comment, he did explain that concerns were raised about him making comments about the Company’s financial status. At the time, Owen denied making any statements similar to Lord’s; however, he did admit to telling some employees that the Company was in a “holding pattern” on some projects, but denied telling other employees to consider finding other employment. Aldridge and Owen exchanged emails confirming this discussion and Owen’s denial of Lord’s allegations. A copy of this email exchange is attached as Exhibit 5. Although Owen represented that he had never made such comments, the Company has recently received information from another employee which may contradict Owen’s response to the Company. The Company is currently investigating this information and will, if confirmed, address this issue with Owen in an appropriate manner.

III. CONTENDER’S RESPONSE TO LORD’S CLAIMS

As evidenced by the information provided in this Response and the Exhibits attached hereto, Lord has not – and cannot – meet her “but for” burden to show discrimination or retaliation under the ADEA.

First, Lord has failed to show any adverse employment action was taken against her. Lord’s transition from Blackstream to Contender resulted in no changes in her compensation, pay, or other

⁷ Owen is 34 years old.

benefits or conditions of employment. That decision was based primarily on the Company's need for a full-time Marketing Director dedicated to Contender. Following her transition, Blackstream no longer had a Marketing Director and, therefore, her role with that entity was not assumed by a younger employee as she alleges.

Second, the verbal warning that Lord received was not an adverse employment action as it has had no impact whatsoever on her employment with Contender. The Company was notified by a concerned employee that Lord had told them that the Company could not afford payroll. This statement was blatantly false, and Lord had no basis or reason to make such a statement. It understandably created concern not only on the part of the employee who raised the issue, but the Company's management. When confronted with the comment, Lord did not deny she made it. Because Lord admitted to making a statement – that was false – about the Company, Contender had a legitimate business reason for counseling Lord against making false statements in the future. This had nothing to do with her age, and this is evidenced by the fact Contender then issued a verbal warning to Owens – who is younger than Lord - after the Company confirmed that he too made false comments about the Company's financial status.

Third, Lord appears to put much stock in the age-based comment allegedly made by Reinert. As stated above, Reinert and the Company absolutely deny any such comment was made. Assuming for the sake of argument only that such a comment was made, it is not evidence of age-based animus because (a) Reinert is 67 years old and therefore also a member of the same protected class as Lord and (b) it is a classic "stray remark" that is not actionable in any event.

Finally, Lord cannot establish a claim of retaliation. While it is true that Lord made a complaint of age discrimination in November 2025, that complaint was investigated and not substantiated. Nonetheless, Phillips – who was the same manager to whom Lord made the complaint – gave Lord an excellent performance evaluation and recommended her for an increase in her salary only weeks after she made her complaint. Lord was disciplined for her comments after she made her complaint for one simple reason – the Company learned of the false statements about 3 weeks *after* she made the complaint. In any event, as discussed above, the verbal warning that she received does not constitute an adverse employment action for purposes of an ADEA retaliation claim.

IV. CONCLUSION

In sum, Contender has established that none of the actions Lord complains of rise to the level of discrimination or retaliation under the ADEA and that any actions Contender has taken in this matter were done so for legitimate, non-discriminatory and non-retaliatory reasons.

Because Lord cannot present any credible evidence of discrimination or retaliation, the Contender requests the Commission issue a "no cause" determination and dismiss Lord's Charge.

Sincerely,

A handwritten signature in black ink, appearing to read "Geo Reeves". The signature is fluid and cursive, with the first name "Geo" and the last name "Reeves" clearly distinguishable.

George A. Reeves III
Partner
For FISHER & PHILLIPS LLP

Enclosure (Exhibits 1-5)